

BEFORE THE STATE BOARD OF LICENSED PROFESSIONAL COUNSELOR
EXAMINERS AND THE STATE BOARD OF ADDICTION COUNSELOR EXAMINERS

STATE OF COLORADO

Case Nos. 2014-716, 2014-717, 2014-768 , 2014-769, 2014-1631, & 2014-1632

STIPULATION AND FINAL AGENCY ORDER

IN THE MATTER OF DISCIPLINARY PROCEEDINGS REGARDING THE LICENSE TO
PRACTICE PROFESSIONAL COUNSELING IN THE STATE OF COLORADO AND THE
LICENSE TO PRACTICE ADDICTION COUNSELING IN THE STATE OF COLORADO OF
KATHLEEN HIGGINS, LPC NO. 5505 AND LAC NO. 328,

Respondent.

IT IS HEREBY STIPULATED by and between the State Board of Licensed Professional
Counselor Examiners and the State Board of Addiction Counselor Examiners (together,
"Boards") and Kathleen Higgins ("Respondent") as follows:

1. The Boards have jurisdiction over the person of Respondent and the subject matter of this Stipulation and Final Agency Order ("Order").
2. Respondent was licensed to practice as a professional counselor ("LPC") and licensed to practice as an addiction counselor ("LAC") in the State of Colorado at all times relevant herein.
3. This Order is a full and final resolution of Case Nos. 2014-716, 2014-717, 2014-768, 2014-769, 2014-1631, and 2014-1632. This Order does not resolve any other cases, complaints, or matters, known or unknown to the Boards or Respondent, as of the effective date of this Order.
4. Respondent admits the following:
 - a. Respondent failed to maintain professional boundaries by giving multiple gift cards to a minor client, along with a large number of her business cards, instructing the client to pass out the business cards at the client's school.
5. By virtue of the facts admitted in paragraph 4 above, Respondent admits and the Boards find that Respondent violated §12-43-222(1)(g) and (i), C.R.S.
6. By virtue of the admissions in paragraphs 4 and 5 above, Respondent is subject to the following disciplinary sanction(s) that the Boards believe is necessary to protect the public health, safety, and welfare.

PROBATION

7. Respondent's LPC and LAC licenses shall be placed on probation for three (3) years commencing from the effective date of this Order, or the date Respondent's therapist and practice monitor are approved, whichever date is later. During the probationary period, Respondent shall be bound by the terms and restrictions set forth in this Order.

8. The period of probation is tolled during any time that Respondent is not practicing as a LPC or LAC in this state, and such period of probation shall resume at such time as Respondent resumes practicing as a LPC or LAC in the State of Colorado in accordance with this Order.

9. Credit toward the period of probation will be given only for the period of time during which Respondent is practicing as a LPC or LAC in Colorado, is undergoing practice monitoring, and is in full compliance with all terms of this Order.

10. If, at the end of the probationary period, Respondent has adhered to all terms and conditions of this Order, Respondent may request termination of probation. Any request for termination of probation must be made in writing to the Boards, and Respondent is responsible for establishing, to the satisfaction of the Boards, that she has satisfied all terms and conditions of probation.

PEER ASSISTANCE SERVICES

11. As a term of this Order, Respondent is required to enter into a contract with Peer Assistance Services ("PAS") and successfully complete her PAS contract, including any recommended extensions of the contract, and she shall not practice professional or addiction counseling at any time that PAS finds she is not safe to practice. Respondent must undergo an assessment/evaluation with PAS on November 3, 2016. Respondent must enter into a contract with PAS within seven (7) days of when the contract is available and ready to be signed. If Respondent does not sign the contract within 7 days of its availability, Respondent agrees to cease practice until such time as Respondent enters into a contract with PAS.

12. Respondent shall comply fully and in a timely manner with the requirements, recommendations, and directions of the PAS contract and the treatment program.

13. Respondent hereby waives any right to or claim of confidentiality to any information, test results or other data pertaining to Respondent's rehabilitation progress, or lack thereof, with PAS, and will execute a release authorizing PAS or if necessary, any other Board-approved alternative program to release reports containing any and all information pertaining to Respondent on a quarterly basis, submitted directly to the Boards. Respondent shall keep all releases current and in effect. Respondent shall cease the practice of professional and addiction counseling at any time that such releases are not current and in effect.

14. If Respondent satisfactorily completes the treatment program, verification to the Boards by PAS of the satisfactory completion of the program shall be deemed sufficient, and the requirements set out herein shall be deemed satisfied, unless other information is reasonably required by the Boards to verify her satisfactory completion of the program.

15. Respondent must immediately notify the Boards in writing if she withdraws from, is removed from, is terminated from, or otherwise fails to participate fully and satisfactorily in her approved PAS program. Should this happen, Respondent shall immediately cease the practice of professional and addiction counseling.

16. During the period of probation, Respondent shall refrain from and cease any practice of professional and addiction counseling if directed by PAS or the Boards until it is verified that she can safely return to practicing professional and addiction counseling without risk to herself or the general public.

PSYCHOTHERAPY

17. During the term of probation, and as part of her contract with PAS, Respondent shall undergo psychotherapy with a mental health provider approved by the Boards and acceptable to PAS ("therapist"). Within 30 days of the effective date of this Order, Respondent shall submit, in writing, three (3) proposed therapists for the Boards' approval. Respondent shall include a program-approved therapist application from each potential therapist, with attached curriculum vita or resume. The therapist shall meet the following criteria:

- a. The therapist shall be a licensed, certified, or listed, currently practicing mental health provider in the State of Colorado;
- b. It is recommended that the therapist have a minimum of five (5) years of experience and has not been subject to professional discipline;
- c. The therapist shall have no current or past financial or personal interest in Respondent or Respondent's practice. Former employees and business associates fall under this provision.

18. After the Boards' written approval of the therapist, Respondent and the therapist shall enter into a written contract for psychotherapy. Respondent must have a therapist approved by the Boards within two (2) months after entering into the contract with PAS. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a therapist is approved.

19. The therapist shall conduct therapy and report to the Boards and PAS in writing as follows:

- a. The psychotherapy must consist of individual or group therapy sessions, or both, that occur in a frequency to be determined by the therapist, but in no event less frequently than once each month, unless otherwise approved by the Boards or PAS based on recommendations of PAS or the therapist; and
- b. The therapist shall report to the Boards and PAS in writing the progress of the psychotherapy and whether Respondent is able to practice with reasonable skill and safety for her clients, including medication management, as needed. The therapist must send a copy of each report to the Boards, PAS, and Respondent. The therapist shall submit his/her first report by the fifth day of the month following the first month of the psychotherapy. The therapist shall submit

subsequent reports by the fifth day of every month thereafter for the first 12 months. After submission of the first 12 reports, unless otherwise ordered by the Boards or PAS, the therapist shall submit reports by the fifth day of every third month (i.e., on a quarterly basis) until the therapy is completed; and

- c. In the first report, the therapist shall state that s/he has received and read a copy of this Order and the Boards' files and must state that s/he understands and agrees to the duties and responsibilities s/he is undertaking as Respondent's therapist.

20. If, at any time, the therapist is of the opinion that Respondent is practicing professional or addiction counseling in a manner that does not meet the generally accepted standards of practice or has a condition that renders her unable to treat clients with reasonable skill and safety or that may endanger the health or safety of persons under her care, the therapist shall report such opinion and the reasons for that opinion to the Boards and PAS. The therapist shall make that report, in writing, within 48 hours of forming her/his opinion. The therapist shall send a copy of such report to PAS and Respondent when s/he sends the report to the Boards. Upon submission of such a report, Respondent shall immediately cease the practice of professional and addiction counseling.

21. Either Respondent or her therapist may terminate the therapeutic relationship upon written notice to the other and the Boards and PAS no less than 60 days before the date of termination. The notice shall state the reason for the termination. In the event Respondent does not have another approved therapist prior to the termination, Respondent shall cease the practice of professional and addiction counseling until she has another approved therapist in place. The subsequent therapist shall conduct therapy with Respondent and report to the Boards and PAS in accordance with this Order.

22. Respondent cannot practice professional or addiction counseling during the period of probation if she is not undergoing therapy in accordance with this Order, unless otherwise provided by the Boards and PAS based on the recommendations of the therapist.

PRACTICE MONITOR

23. During the term of probation, and as part of her contract with PAS, Respondent's practice shall be monitored by a practice monitor. If the Boards have not already approved Respondent's practice monitor, Respondent must follow the same steps as outlined in paragraph 17 above in order to secure a practice monitor.

24. Respondent must have a practice monitor approved by the Boards within two (2) months after entering into the contract with PAS. If this requirement is not satisfied, Respondent must cease practice and agrees to suspension of her practice until a practice monitor is approved.

25. After the Boards' written approval of the practice monitor, Respondent and the practice monitor shall enter into a written contract for monitoring. The practice monitor shall provide a copy of the written contract to the Boards and PAS as a part of his/her first report to the Boards and PAS. The contract must contain a provision stating that the practice monitor has received a copy of this Order, the complaint and responsive documents, any investigative report, and the practice evaluation; has read these documents; and understands the duties and

responsibilities s/he is undertaking as Respondent's practice monitor. The practice monitor shall ensure that a written notification is provided to each of Respondent's clients, informing the clients of the name, address, and telephone number of the practice monitor. This written notification may be provided in a mandatory disclosure statement.

26. The practice monitoring shall consist of individual, in-person (face-to-face) sessions that occur for one hour, or such longer time as the practice monitor deems necessary, for every 20 hours of client contact, but at least once each month. Respondent and her practice monitor must review and discuss each of Respondent's active cases at least once every month in order to allow the practice monitor to be able to determine whether Respondent is practicing professional or addiction counseling in accordance with generally accepted standards of practice and with skill and safety for her clients.

27. The practice monitor shall submit a written report to the Boards and PAS on the fifth day of the month following the first full month of practice monitoring. All subsequent reports shall be submitted on the fifth day of each month for the first 12 reports. After the submission of the first 12 reports, unless otherwise ordered by the Boards and PAS, the practice monitor shall submit his/her reports by the fifth day of every third month (i.e. on a quarterly basis) until the practice monitoring is completed.

28. If at any time the Boards have questions or concerns regarding the monitoring, the practice monitor agrees to attend any Board meeting necessary to address the Boards' concerns. The Boards will give the practice monitor 30 days of notice prior to requiring the practice monitor's attendance at the Board meeting.

29. If at any time the practice monitor believes Respondent is not in compliance with this Order, is unable to practice with skill and safety to her clients, or has committed a violation of the practice act or rules and regulations, the practice monitor shall immediately notify the Boards, in writing, and include the basis for this conclusion. A copy will be sent to Respondent and PAS. Upon submission of such a report, Respondent shall immediately cease the practice of professional and addiction counseling.

30. Respondent shall make every effort to ensure that all reports by the practice monitor are complete and timely submitted to the Boards and PAS. If, in the Boards' or PAS's judgment, the practice monitor fails to perform the function specified by this Order, the Boards or PAS may require that a new practice monitor assume the responsibilities herein. If for any reason the practice monitor ceases to perform the functions specified in this Order, Respondent shall submit, in writing, a new proposed practice monitor to the Boards within 30 days.

31. Respondent or the practice monitor may terminate the monitoring relationship upon written notice to the other and to the Boards and PAS not less than 60 days before the date of termination. The notice shall state the reason for the termination. Respondent shall immediately initiate efforts to obtain another approved practice monitor, who shall conduct her/his monitoring and report to the Boards in accordance with this Order.

CONTINUING EDUCATION

32. Respondent must successfully complete twenty (20) hours of Board-approved professional continuing education ("CE") courses each year during the probationary period in the areas of supervision, professional practice, ethics, and boundaries. Respondent shall obtain Board approval of the courses prior to enrolling in each course. Upon completion of a course, Respondent shall ensure that a certificate of completion is provided to the Boards. These hours of CE completed pursuant to this section shall be required in addition to, and may not be counted toward, the mandatory Continuing Professional Development requirements for an active Colorado license or to meet any other licensure requirements.

ABSTINENCE FROM ADDICTIVE SUBSTANCES

33. During the period of probation, and as part of her contract with PAS, Respondent shall abstain from the use of any habit-forming drug, any controlled substance, and/or any alcoholic beverage other than as administered, dispensed or prescribed by an authorized person other than Respondent. Respondent shall use such habit-forming drug or controlled substance only as directed by such authorized person and only for the condition identified by such authorized person.

34. Respondent agrees to random urinalysis testing monitored and administered by a Board or PAS approved agency to insure compliance with this Order. Respondent shall continue to submit to urinalysis testing, monitored and administered by the approved agency, on randomly selected days on a frequency recommended by the agency and approved by the Boards or PAS. Respondent shall sign a release and/or execute any necessary waiver to ensure that the agency or PAS may report her progress and compliance with this Order to the Boards and/or her therapist.

TERMS AND CONDITIONS

35. Respondent will strictly observe the prohibitions set forth in §12-43-222, C.R.S., and will ensure that she does not engage in any activities that are prohibited and that she practices in accordance with the generally accepted standards of practice.

36. Respondent shall not supervise or consult with other mental health providers for the purpose of those persons providing psychotherapy, unless such supervision or consultation is monitored in accordance with this Order.

37. All expenses incurred or associated with the practice evaluation, therapy evaluation, therapy, practice monitoring, education, or any other requirement necessary to fulfill the terms of this Order, shall be the sole responsibility of Respondent and not the Boards.

38. In the event Respondent relocates at any time during the probationary period, Respondent shall notify the Boards of the change of address within 30 days of the effective date of such change.

39. Respondent is fully aware of and understands the right to receive a formal notice of hearing and charges and to have a formal disciplinary hearing, pursuant to §§12-43-212 and 24-4-104(9), C.R.S., and hereby waives those rights. Further, Respondent also acknowledges that this waiver constitutes a waiver of all rights to appeal in this matter.

40. This Order is entered into by Respondent voluntarily and without coercion, after an opportunity to consult with counsel and with full understanding of the legal consequences of this Order and the right to a formal hearing on all matters herein.

41. This Order shall become an order of the Boards when it is accepted and signed by the Program Director or authorized Board representatives.

42. The Order entered pursuant to this Stipulation and Final Agency Order shall constitute a Board Order for purposes of §12-43-222, C.R.S., and shall have the same force and effect as an order entered after a formal hearing pursuant to §§12-43-212, 12-43-224, and 24-4-104(9), C.R.S.

43. Respondent acknowledges and agrees that any violation of this Order shall constitute a violation of a lawful Board Order and be grounds for further proceedings pursuant to the Mental Health Practice Act and, if proven, may constitute a basis for disciplinary action. The pendency of any disciplinary action shall not affect the obligation of Respondent to comply with the terms of this Order, and this Order shall remain operative and in full force and effect.

44. Respondent shall obey all state and federal laws while this Order is in effect.

45. This Order constitutes the entire agreement between Respondent and the Boards. There are no other promises expressed or implied. In the event that any provision of this Order is deemed unenforceable by a court of competent jurisdiction, such provision shall be severed, and the remainder of this Order shall be given full force and effect.

46. This Order shall become effective upon (a) mailing by first-class mail to Respondent at Respondent's address of record with the Boards, or (b) service by electronic means on Respondent at Respondent's electronic address of record with the Boards. Respondent hereby consents to service by electronic means if Respondent has an electronic address on file with the Boards.

47. This Order shall be admissible as evidence at any hearing held before the Boards.

48. This Order shall be a public record in the custody of the Boards.

ACCEPTED AND AGREED BY:

RESPONDENT


KATHLEEN HIGGINS
LPC NO. 5505
LAC NO. 328

APPROVED AS TO FORM AND
SUBSTANCE BY:


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Attorney for Respondent

ACCEPTED AND ORDERED BY:

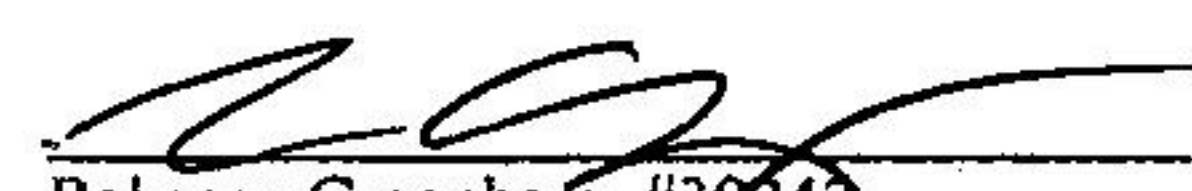
STATE BOARD OF ADDICTION
COUNSELOR EXAMINERS AND STATE
BOARD OF LICENSED PROFESSIONAL
COUNSELOR EXAMINERS


CATHERINE RODRIGUEZ
Program Director

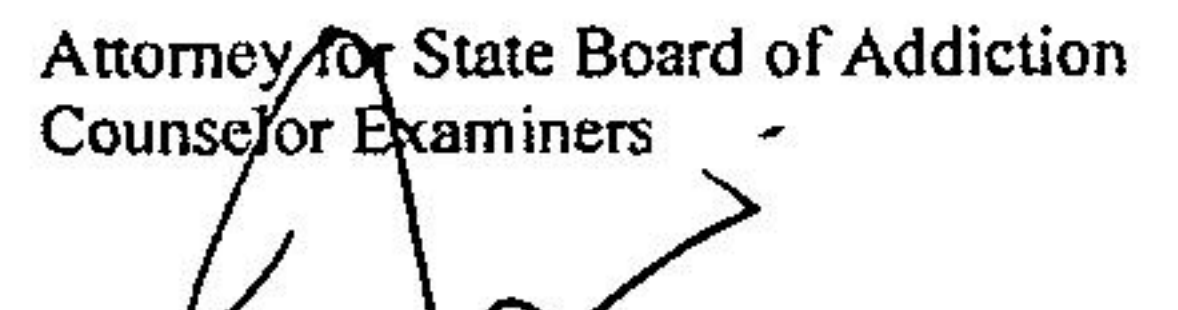
Effective Date: This 3 day of
November, 2016.

APPROVED AS TO FORM AND
SUBSTANCE BY:

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